

302	<i>Hull vs. City of Orange</i>	The Motion for Summary Judgment filed on 1/8/26 by Defendant City of Orange (City), which seeks summary judgment on the Complaint filed on 6/25/24 by Plaintiff Brandon Jacob Hull (Plaintiff) is GRANTED. City has met its burden to show that it is entitled to judgment as a matter of law on the sole cause of action asserted by Plaintiff against City, for dangerous condition of public property. In response, Plaintiff has failed to show a triable issue of material fact as to either that cause of action or the proffered defense thereto. City has shown that it did not have notice of a dangerous condition at the subject Intersection prior to the accident. It is undisputed that there had been no reported accidents there in the past decade. (UF 6.) Plaintiff argues that City had been on notice of visibility issues based on complaints in 2005 and 2007. (AF 23, 24, 32, 36, 73.) But a single prior accident does not establish notice that an intersection was unreasonably dangerous. (<i>Mixon v. Pacific Gas & Electric Co.</i> (2012) 207 Cal.App.4th 124, 138.) Similarly, one complaint about safety concerns in 2007 does not suffice. (<i>Id.</i>) City has also shown that in response to the 2005 complaint, it extended the red zone to improve visibility – and thereafter, had no further complaints about that intersection. (UF 6-9.) Plaintiff’s Evidentiary Objections, filed as ROA 125, are OVERRULED. City’s Evidentiary Objections, filed as ROA 132, are SUSTAINED on Obj. Nos. 2 and 3 [hearsay] but otherwise OVERRULED. City shall give notice.
303	<i>United Auto Credit Corporation vs.</i>	Plaintiff United Auto Credit Corporation’s motion to enforce settlement is GRANTED. (See Code of Civ. Proc. § 664.6.)

	<i>Car Stop Auto Inc.</i>	The court shall enter judgment for plaintiff and against defendants Car Stop Auto Inc., Murtaza Z. Mirza and Mirza M. Gulzar in the amount of \$6,000 plus \$1,952.81 in attorney fees pursuant to contract. The court will sign the proposed judgment. Plaintiff shall give notice.
304	<i>Habibi vs. Catholic Charities Diocese of San Diego</i>	The unopposed demurrer filed by defendant Catholic Charities Diocese of San Diego (Defendant) directed to the first amended complaint (FAC) of plaintiff Ghulam Reza Habibi (Plaintiff) is SUSTAINED IN PART with leave to amend. Plaintiff shall file a second amended complaint no later than 6/12/26. Defendant's unopposed motion to strike is GRANTED without leave to amend. <u>Demurrer</u> <u>First Cause of Action for Negligence:</u> The allegations in the FAC appear sufficient to allege a duty owed by Defendant to Plaintiff. (FAC ¶¶ 14, 30.) Defendant argues discretionary decisions in administering public programs do not create tort liability absent a mandatory statutory directive, citing <i>Guzman v. County of Monterey</i> (2009) 46 Cal.4th 887. But that case dealt with public entity liability under Government Code section 815.6. Here, the FAC alleges Defendant is a nonprofit organization. (See FAC ¶ 8.) Moreover, Defendant makes no argument it is a public entity such that the provisions of Government Code section 815.6 would apply to it. Defendant has thus failed to show the claim is subject to demurrer on this ground.